

POPIA SECTION 21 OPERATOR AGREEMENT

DATA PROCESSING ADDENDUM (DPA) | STATUTORY PRIVACY CONTRACT

PARTIES TO THIS ADDENDUM

- 1. THE CLIENT / REGISTERED EMPLOYER** (hereinafter referred to as the 'Responsible Party')
- 2. SIMPLE SOLUTIONS (PTY) LTD** Registration / VAT Number: 28911466, P.O. Box 123, Southbroom, 4277 (hereinafter referred to as the 'Operator')

1. PREAMBLE & STATUTORY PURPOSE

- 1.1** WHEREAS the Responsible Party utilizes 'The Vault' SaaS platform to manage employee safety inductions, digitize attendance registers, and log statutory risk assessments;
- 1.2** AND WHEREAS in delivering these Services, Personal Information belonging to the Responsible Party's employees, seasonal workers, and supervisors is captured, stored, and processed;
- 1.3** AND WHEREAS Section 21 of the Protection of Personal Information Act 4 of 2013 ('POPIA') mandates that a Responsible Party must ensure that an Operator establishes and maintains security safeguards, governed by a written contract;
- 1.4** NOW THEREFORE the parties enter into this legally binding Section 21 Agreement.

2. SCOPE AND NATURE OF PROCESSING

- 2.1 Data Subjects:** Farmworkers, packhouse operators, seasonal harvesters, equipment operators, workshop technicians, and farm supervisors.
- 2.2 Categories of Personal Information:** Full names, employee/clock numbers, gender, digital signatures, module completion timestamps, comprehension scores, and linked estate codes.
- 2.3 Exclusion of Special Personal Information:** The Operator's platform does not capture or store biometric facial/fingerprint scans, trade union affiliations, religious beliefs, or medical histories, save for basic operational PPE declarations and weather fitness verifications.

3. STATUTORY UNDERTAKINGS OF THE OPERATOR (POPIA SECTION 21)

- 3.1 Processing Boundaries:** The Operator warrants that it shall process Personal Information strictly with the knowledge or authorization of the Responsible Party, and solely for delivering The Vault Services, generating statutory audit registers, and compiling verifiable audit certificates.
- 3.2 Confidentiality:** The Operator warrants that all personnel, engineers, and authorized sub-processors with access to Personal Information are bound by strict contractual confidentiality undertakings.
- 3.3 Technical and Organizational Security (POPIA Section 19):** The Operator warrants that it has implemented appropriate and reasonable technical and organizational measures to prevent loss of, damage to, unauthorized destruction of, or unlawful access to Personal Information, including:
 - **Proprietary Access Control:** Custom-built, POPIA-compliant authentication and role-based session control replacing all third-party user management plugins.

- **Encryption:** End-to-end TLS encryption for all data in transit and AES-256 encryption at rest for all database repositories and stored digital signatures.
- **Row-Level Security (RLS):** Strict relational database isolation ensuring that Client tenant data cannot be queried, leaked, or accessed by other estates or corporate processors.

4. WARRANTIES OF THE RESPONSIBLE PARTY

4.1 Lawful Basis: The Responsible Party warrants that it has established a lawful justification under Section 11 of POPIA for processing worker Personal Information, specifically to comply with statutory employer duties under Section 8 of the OHSA.

4.2 Worker Notification: The Responsible Party warrants that it has informed its workers, in terms of Section 18 of POPIA, that their attendance logs, clock numbers, and verification signatures are digitally stored for health, safety, and agricultural audit compliance purposes.

5. DATA BREACH NOTIFICATION (POPIA SECTION 22 PROTOCOL)

5.1 Immediate Notification: The Operator shall notify the Responsible Party in writing immediately upon becoming aware of, or suspecting on reasonable grounds, that the Personal Information of any Data Subject has been accessed or acquired by any unauthorized party.

5.2 Incident Details: Such notification shall contain sufficient information regarding the nature of the breach, affected records, and remediation steps to enable the Responsible Party to notify the Information Regulator and affected Data Subjects under Section 22.

6. RETENTION, DESTRUCTION, AND RETURN OF DATA

6.1 Post-Termination Protocol: Upon termination of the subscription or upon written request by the Responsible Party, the Operator shall, at the election of the Responsible Party, securely export or permanently purge all identifiable employee training records, subject to statutory retention cycles under the OHSA.

6.2 Exemption for De-Identified Data: This clause does not apply to De-Identified Data scrubbed into immutable, aggregated research and compliance benchmarks where all personal identifiers have been permanently removed.